

Athens, 18-09-2024

Ref. No. 2532

DECISION 31 / 2024

The Hellenic Data Protection Authority convened at the invitation of its President at its headquarters, Kifisias 1-3, Athens, on Tuesday, February 20, 2024, in order to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, the regular members of the Authority Spyridon Vlachopoulos, as rapporteur, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigorios Tsolias. Present without voting rights were Anastasia Tritaki, legal auditor – lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the complaint under ref. no. G/EIS/10822/07-10-2022, A (hereinafter the complainant) brought to the attention of the Authority the following: With the application-complaint under ref. no. ..., he protested before the Municipality of Metamorfosi regarding the encroachment of a sidewalk due to the existence of a door mechanism at the address ... and requested a relevant response/update regarding the actions of the Municipality. The Municipality of Metamorfosi (hereinafter the respondent) through the Directorate of Technical Services, sent (as claimed by the complainant, following reminders) the document under ref. no. ... to the owner of the property at the address ..., in which it pointed out the repeated reminders of the Municipality's Technical Service for the removal of the illegal door mechanism and set a compliance deadline of five calendar days, noting that otherwise the case would be referred to the Municipality's Legal Service. In the aforementioned document under ref. no. ..., which the respondent communicated to the complainant, there is a full listing of his address details on the body of the document and, in view of this, the complainant submitted the complaint under ref. no. G/EIS/10822/07-10-2022 to the Authority for the violation of his address details through the communication to the owner of the property for which he submitted the application-complaint under ref. no. ... before the respondent.

The Authority, in the context of examining the above complaint, sent to the respondent Municipality of Metamorfosi the document under ref. no. G/EK/3310/16-12-2022 requesting opinions regarding the matters mentioned in the said complaint. Subsequently, the Data Protection Officer (hereinafter DPO) of the respondent sent to the Authority the document under ref. no. G/EIS/260/13-01-2023 providing clarifications, in which he pointed out that the complainant submitted the application-complaint under ref. no. ..., and in response to this, the document under ref. no. ... was communicated to the complainant. In this regard, with the aforementioned memorandum, the DPO invoked Decision 73/2010 of the Authority, according to which the respondent, as the data subject concerning the submitted complaint to a public service, has the right of access, not only to the text of the complaint but also to any information related to the origin (source) of this data, while the identification details of the complainant, such as his name and address, constitute the origin of the data. The aforementioned right of access may be restricted due to the concurrent application of Article 15(4) of the GDPR and Article 5(3) of the Code of Administrative Procedure (Law 2690/1999), as well as by special provisions that impose or possibly allow absolute or partial confidentiality, as well as in cases where the disclosure of the complainant's details may threaten the supreme legal good of his life. Furthermore, given that the complainant is likewise a data subject of the data contained in the complaint, he should be informed in any appropriate manner, at the time of submitting his complaint, about the possibility for the respondent to access the details thereof, while the complainant, who does not wish his identity to be disclosed...

3

In this regard, it must be initially invoked and justified in writing the relevant reasons, so that they can be duly examined by the public authority. In this case, as noted in the aforementioned memorandum,

the complainant did not invoke a specific reason for the non-disclosure of his details to the respondent; therefore, the respondent is a legitimate recipient of the text and other details of the complaint. Moreover, the complainant submitted request no. Γ/ΕΙΣ/7411/19-10-2023 for a copy of the respondent's views, which was granted to him with the document no. Γ/ΕΞ/2607/19-10-2023 from the Authority.

Following the examination of the file's details, the Authority sent the call for a hearing numbered Γ/ΕΙΣ/2818/08-11-2023 to the complainant and the call numbered Γ/ΕΙΣ/2819/08-11-2023 to the respondent, in order to attend, via teleconference, a hearing before the Plenary of the Authority on Tuesday, 14/11/2023 at 11:00 a.m., regarding the discussion of the aforementioned complaint. With his memorandum numbered Γ/ΕΙΣ/8008/09-11-2023, which was communicated to the respondent Municipality with the document numbered Γ/ΕΞ/2842/10-11-2023 from the Authority, the complainant raised the question of the existence of his consent for the disclosure of his personal data, in the sense of his signature on a request document or letter, while he pointed out that the respondent Municipality is responsible for the issue he mentioned (occupation of public space and danger).

The complainant did not attend the aforementioned hearing, although he was duly and timely summoned with the sending of a call, teleconference instructions, and an email requesting him to inform the Authority regarding any representation. The respondent Municipality was represented by its attorney Olga Giakoumaki with registration number ΔΣΑ ..., serving under a paid mandate, while present on behalf of the Ministry of Digital Governance was Konstantina Ithakisiou with registration number ΔΣΑ ... from KAPA DATA CONSULTING IKE.

The respondent Municipality, after orally presenting its views, was granted a deadline during the session to submit a written memorandum by November 30, 2023, to further support its claims, which it submitted in a timely manner. During the aforementioned hearing and with the memorandum numbered Γ/ΕΙΣ/8482/29-11-2023 following the hearing, the respondent Municipality, after invoking again Decision 73/2010 of the Authority, claimed that during the pandemic, the Municipality modernized its electronic system for the submission of citizens' complaints, including informing the complaining citizen about the possible disclosure of his details to the complained party and emphasizing the need to provide reasons, if the complaining citizen does not wish for such disclosure to take place. A special complaint form is posted in the electronic system, which can also be obtained from the Municipality's Protocol, and with which each complainant is fully informed of the legislative framework for the processing of his personal data and is given the option regarding whether or not he wishes to disclose his details to the complained party, with a parallel provision for stating the reasons for which he does not wish his details to be disclosed, with a clear note that "the validity of the stated reasons will be evaluated by the competent Authority."

However, as the respondent points out, the relevant complaint was submitted by the complainant at a time when (2017-2018) the Municipality, although it had no related obligation, at the suggestion of the Ministry of Digital Governance, was orally informing complainants about the possible disclosure of their details to the complained party. Furthermore, the respondent Municipality points out that the complainant never reserved the use of his data, nor did he mention or specify the reasons for which he might refuse such disclosure, as he completed a "Request" form to the Municipality and not a "Complaint" form. In any case, as the respondent Municipality added, the submitted complaint also constitutes a public document, to which the provisions of Article 5 of the Code of Administrative Procedure apply, according to which the public authority has an obligation to provide access (while citizens have the corresponding right) to public documents.

The Authority, after examining the details of the file and those arising from the hearing before it and the memoranda of the parties, after

1 The relevant link is provided: <https://www.metamorfossi.gov.gr/o-dimos/upovoli-paraponon-kataggeli-on/upovoli-kataggelion-sto-dimo>

5

listened to the presenter and the clarifications from the assistant presenter, who was present without voting rights, following an extensive discussion,
THOUGHT ACCORDING TO THE LAW

1)

Since the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation 2016/679, hereinafter GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) indicate that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 point (f) of the GDPR and 13 paragraph 1 point (z) of Law 4624/2019, it follows that the Authority has the competence to address the complaint of A against the Municipality of Metamorfosi, as it arises from the aforementioned claims from both sides that the respondent proceeded to extract the name and address of the complainant from a filing system according to Article 4 point 6) GDPR, and communicated this by transmitting it to the complained party, thus involving non-automated processing of personal data, as defined in Article 4 point 2) GDPR, falling under the regulatory scope of Articles 2 paragraph 1 of the GDPR and 2 of Law 4624/2019.

2)

Since, with Article 5 paragraph 1 of the GDPR, the principles that must govern a processing are established. Specifically, paragraph 1 of the aforementioned article provides, among other things, that personal data shall be processed lawfully and fairly in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency", point (a)), collected for specified, explicit, and legitimate purposes and not further processed in a manner incompatible with those purposes (...) ("purpose limitation", point (b)), are adequate, relevant, and limited to what is necessary for the purposes for which they are processed ("data minimization", point (c)). Furthermore, according to Article 5 paragraph 2 GDPR: "The controller shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ("accountability").", therefore the controller is obliged to demonstrate their compliance with the processing principles of Article 5 paragraph 1 GDPR at all times.

3)

Since, with Decision 73/2010, the Authority ruled that the citizen against whom a complaint has been submitted before a public authority has, as the data subject concerning them, the right of access, not only to the text of the complaint but also to any information related to the origin (source) of that data, such as the name and address of the person who submitted the complaint, since the concept of "origin" may also include third parties who provided the relevant information. In this regard, as the Authority ruled in the aforementioned decision, and given that the complainant is also a data subject whose personal data is contained in the complaint (the identity details of the natural person, author of the complaint, and their contact details), each public service, already at the stage of data collection, has the obligation to inform them, among other things, about the recipients of that data. Consequently, it is advisable, already at the time of submitting a complaint to a public service, for the latter to inform the complainant that both the text of their complaint and their name are data that may be disclosed to the complained party, especially if the latter requests them. Therefore, each complainant should initially justify the reasons that warrant the non-disclosure of their details to the complained party. The public service, correspondingly, may initially examine the legality of the reasons presented by the complainant and, additionally, in case it discloses the information, it will not be obliged to inform the complainant again about this disclosure (since it will have already informed them at the time of submitting the complaint about the disclosure of that information to the complained party).

2 Decision of the Hellenic Data Protection Authority 73/2010, available on its website.

3 See, for example, Decisions of the Hellenic Data Protection Authority 4/2003 and 43/2003.

4 See EUROPEAN DATA PROTECTION SUPERVISOR, brief summary of the document "Public Access to Documents and Data Protection" (as above footnote 5), p. 7, where it is specifically noted that "[...] The maintenance of both rights (i.e., the right of public access to public documents and the right to personal data protection) can be enhanced by proactive measures, namely the prior proper information of the data subject regarding the treatment reserved for personal data [...]".

5 Decision of the Hellenic Data Protection Authority 73/2010, paragraphs 2, 6.

7

4) Because, in the case under examination, from the entirety of the evidence in the case file and the submitted memoranda, it does not emerge that a right of access to the data of the

application-complaint with reference number ... was exercised by the complainant before the Municipality of Metamorfosi. Consequently, the notification of the name and address of the complainant to the owner of the property for which the complainant submitted the application-complaint with reference number ... before the Municipality of Metamorfosi, took place ex officio by the Municipality in question.

5) Because, consequently, it must be examined whether the aforementioned ex officio action of the Municipality, namely the notification of the name and address of the complainant to the owner of the property for which the complainant submitted the application-complaint with reference number ..., took place in accordance with the processing principles enshrined in Article 5 paragraph 1 of the GDPR. Regarding the adherence to the principle of transparency of Article 5 paragraph 1 point a) of the GDPR, the Municipality in question claimed before the Authority that during the period of submission of the application-complaint with reference number ... by the complainant, it was providing, through its organs and services, upon the instruction of the Data Protection Officer, oral information to citizens regarding the potential notification of complaints to the complained parties. However, this claim was not sufficiently substantiated before the Authority, in accordance with Article 5 paragraph 2 of the GDPR, in the sense that no relevant opinion, directive, or other document was submitted that substantiates the aforementioned claim and consequently, in this respect, it was not proven by the Municipality in question, in accordance with its obligation arising from the aforementioned principle of accountability, adherence to the principle of transparency, by providing appropriate information, in the sense of Article 5 paragraph 1 point a) of the GDPR and in accordance with Decision 73/2010 of the Authority.

6) Because, in any case, even if it were to be considered that oral information was provided to the complainant, it must be examined whether the contested notification of the name and address to the owner of the property for which the complainant submitted the application-complaint with reference number ... meets the other processing principles, as they are enshrined in Article 5 paragraph 1 of the GDPR, since, in order for personal data to be lawfully processed, the conditions for the application and adherence to these processing principles must be cumulatively met.

7) Because from the evidence in the file, and what emerged from the hearing process and the submitted memoranda, and taking into account the nature of the reported violation (urban planning), the purpose for which the complainant's data was communicated to the owner of the property does not emerge, as it is not connected to the purpose of the document with reference number ..., namely the warning to the owner of the property regarding the deadline for remedying the urban planning violation, the control of which indeed falls within the ex officio exercised competences of the Municipality. According to the principle of proportionality (Constitution, Article 25 paragraph 1 point c), processing is permitted if it is capable of achieving the intended purpose (principle of suitability/appropriateness), but only if it is absolutely necessary for that purpose, meaning that the least burdensome action for the subject is taken, and any further processing is unnecessary, even if it is beneficial (principle of necessity). Every processing of personal data that is not suitable and necessary for achieving the intended purpose or is carried out beyond that is not lawful.

8) Because following the above, the Authority finds that in this case the notification of the complainant's data to the owner of the property constitutes unnecessary processing, contrary to the principles of appropriateness, necessity, and minimization of processing set forth in the aforementioned provisions of the GDPR, and constitutes a violation of Article 5 paragraph 1 point c) of the GDPR. Given that in order for personal data to be lawfully processed, that is, processed in accordance with the requirements of the GDPR, the conditions must be cumulatively met.

9

Cumulatively, the conditions for the application and adherence to the principles of Article 5(1) of the GDPR⁹ must be met, and if a lack of compliance with the principles of transparency and data minimization as provided in Article 5(1)(a) and (c) of the GDPR is established, the processing is deemed unlawful, and the examination of the fulfillment of the other principles of lawful data processing under Article 5(1) of the GDPR becomes unnecessary.

In light of this, the Authority deems it appropriate to exercise its corrective powers in accordance with

Article 58(2) of the GDPR and Article 39 of Law 4624/2019, as well as Recital 148 of the GDPR, which states: "In order to enhance the enforcement of the rules of this Regulation, penalties, including administrative fines, should be imposed for each infringement of this Regulation, in addition to or instead of appropriate measures imposed by the supervisory authority in accordance with this Regulation. In the case of a minor infringement or if the fine that may be imposed would constitute a disproportionate burden on a natural person, a reprimand may be imposed instead of a fine. However, due consideration should be given to the nature, gravity, and duration of the infringement, the intentionality of the infringement, the actions taken to mitigate the damage, the degree of responsibility or any other relevant previous infringements, the manner in which the supervisory authority became aware of the infringement, compliance with measures against the data controller or processor, adherence to a code of conduct, and any other aggravating or mitigating factors. (...)" In assessing the data, the Authority takes into account the following elements for the case at hand¹⁰:

9 CJEU, C-496/17, Deutsche Post AG v. Hauptzollamt Köln¹, January 16, 2019, para. 57 and see also Council of State 517/2018 para. 12: "[...] in order for personal data to be processed lawfully, it is required that the conditions of Article 4(1) of Law 2472/1997 are cumulatively met, which, among other things, stipulates that data must be collected and processed fairly and lawfully, for specified and legitimate purposes... Provided that the conditions of Article 4(1) of Law 2472/1997 (lawful collection and processing of data for specified and legitimate purposes) are met, it is further examined whether the conditions of Article 5(2) of Law 2472/1997 [legal bases] are also met."

10 See also Guidelines 04/2022 on the calculation of administrative fines under the GDPR, Edition 2.1, May 24, 2023, and the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 of the Article 29 Working Party, October 3, 2017.

10

- that the specific security breach did not take on a broader character, while the complainant did not claim any material or moral damage related to the said breach,
- that the established breach does not concern a special category of personal data of the complainant,
- that the respondent could not take actions to mitigate the damage suffered by the data subject,
- that the Authority has not previously established any infringement on the part of the respondent,
- that the respondent documented before the Authority that it has currently restructured the complaint submission system through a special form on which information is provided regarding the potential disclosure of the complainant's details to the reported person and a note on the need to provide reasons, if and to the extent that the complainant does not wish for such disclosure to occur.

FOR THESE REASONS

The Authority

finds that the disclosure of the complainant's data by the reported Municipality of Metamorfofi constitutes a violation of Articles 5(1)(a) and (c) of the GDPR and issues a reprimand under Article 58(2)(b) of the GDPR to the reported data controller, for the reasons extensively analyzed in the reasoning of this decision.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou